

ARBITRAL TRIBUNAL
SOLE ARBITRATOR: MR. JUSTICE (RETD.) N. K. VARADACHARI
SEAT OF ARBITRATION: NEW DELHI
ARBITRATION CASE NO. ARB/114/2026

WITNESS STATEMENT — SITE ENGINEER, MERIDIAN INFRA PROJECTS

I, the deponent named above, presently associated with Meridian Infra Projects Limited, state on solemn affirmation as follows:

Do hereby solemnly affirm and state as follows:

1. I was posted as the resident site engineer for the substation works from June 2024 to March 2025 and have direct, first-hand knowledge of the site-level facts deposed to below.
2. I state that the first two substations were completed on schedule and that the Respondent raised no complaint regarding site access or handover in respect of either location.
3. I state that access to the third substation site was handed over to the Respondent's team on 05.03.2025, that a joint site inspection was conducted on that date, and that no impediment was raised by the Respondent's site representative at that time.
4. I state that the residual land-clearance formalities at the northern boundary of the site, referred to in the Respondent's Statement of Defence, were minor in extent and did not obstruct the Respondent's ability to commence excavation and foundation work at the main footprint of the third substation.
5. I state that the delay thereafter arose from the Respondent's own mobilisation of equipment, which took approximately seven additional weeks, as recorded contemporaneously in the Claimant's Site Diary (Exhibit C-4).
6. I state that I have reviewed the Minutes of Meeting maintained for this project (Exhibit C-4) and confirm that the progress-review minutes for the relevant period record the Respondent's own acknowledgement of delayed equipment mobilisation without attributing the same to any act or omission of the Claimant.
7. I state that the contents of this witness statement are true to my personal knowledge as the site engineer responsible for the project during the relevant period.

VERIFICATION

The contents of this witness statement are true to my personal knowledge.

Verified at New Delhi on this the 15th day of March, 2026.

DEPONENT